

Limits of International Pluralism

Treaty Freedom, Universal Consent,
State Foundation, Treaty Chains,
Juridical Singularity and the
Transformation of International Law
into Internal Law



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Abstract

Contemporary international law is traditionally understood as a decentralized legal order grounded in sovereign equality and state consent. The prevailing doctrinal framework assumes the permanent coexistence of multiple sovereign entities and regards treaty law as a mechanism for coordination rather than constitutional integration. This article revisits that assumption by examining the outer limits of treaty-making freedom under international law.

The article argues that the principles of sovereign equality, freedom of treaty formation, and universal consent contain a latent transformative potential that has not been fully explored in contemporary scholarship. If sovereign states possess unrestricted authority to conclude treaties, modify territorial arrangements, transfer competences, create new legal entities, and establish institutional structures through unanimous agreement, then international law contains an internal mechanism capable of generating progressively integrated legal orders.

The analysis proceeds in several stages. First, it examines the doctrinal foundations of consent in international law through Article 38 of the Statute of the International Court of Justice and the classical voluntarist tradition associated with Anzilotti, Triepel, and Jellinek. Second, it analyzes treaty-making freedom as an expression of sovereignty under the Vienna Convention on the Law of Treaties and related jurisprudence. Third, it explores the role of treaty chains, mixed agreements, and interconnected legal regimes as mechanisms of legal consolidation. Fourth, it examines questions of state formation, state succession, territorial expansion, and infrastructure-based jurisdiction. Finally, it develops the concept of Juridical Singularity as a doctrinal endpoint at which international legal pluralism contracts into a unified legal order through successive acts of lawful consent.

The article does not propose a political program. Rather, it investigates whether the internal logic of existing international law permits the emergence of legal structures whose cumulative effect would transform external international relations into a constitutionalized internal legal order. In doing so, it seeks to contribute to ongoing debates concerning sovereignty, state succession, constitutionalization, and the future evolution of international legal systems.

I. Introduction

A. Research Question

International law is commonly described as a legal order founded upon the consent of sovereign states.[1] Unlike domestic legal systems, no central legislature possesses general authority to impose obligations upon states without their agreement.[2] The foundational premise of the modern international system therefore remains the principle that legal obligations arise primarily through voluntary acts of consent, particularly through treaties and established rules of customary international law.[3]

This article investigates a question that emerges from this voluntarist structure:

If sovereign states possess unrestricted freedom to create legal obligations through unanimous agreement, does international law contain an internal pathway through which a plurality of sovereign entities could progressively consolidate into a unified legal order?[4]

The question is not whether such a development is politically desirable or historically probable. Rather, it concerns the legal architecture of international law itself and the extent to which treaty-making freedom permits institutional transformation beyond traditional assumptions of permanent state plurality.[5]

The inquiry is situated within long-standing debates concerning sovereignty, state succession, constitutionalization, treaty law, and the relationship between international and domestic legal orders.[6] While most scholarship examines these fields separately, the present study explores their cumulative interaction and asks whether their combined operation generates a previously underexplored legal trajectory.

B. Methodology

The analysis adopts a doctrinal methodology grounded primarily in public international law.[7] Particular emphasis is placed upon:

1. The sources of international law recognized by Article 38(1) of the Statute of the International Court of Justice;[8]
2. The Vienna Convention on the Law of Treaties (1969);[9]
3. The Vienna Convention on Succession of States in Respect of Treaties (1978);[10]
4. Judicial decisions of the Permanent Court of International Justice and the International Court of Justice;[11]
5. Classical and contemporary scholarship concerning sovereignty, consent, treaty law, state succession, and constitutionalization.[12]

The study proceeds by reconstructing the legal implications of existing doctrines rather than proposing new positive rules. Its objective is to identify the outer limits of currently recognized legal principles and to determine whether those principles permit forms of legal integration extending beyond conventional models of international cooperation.[13]

C. Scope of the Study

The article focuses exclusively upon questions of public international law.

It does not attempt to evaluate political feasibility, diplomatic likelihood, military considerations, or economic practicality. Nor does it seek to predict future developments in international relations.

Instead, the analysis examines the legal consequences that would follow if states exercised their recognized treaty-making capacities to their fullest extent under existing international law.[14]

Particular attention is devoted to five interconnected fields:

- treaty-making freedom;
- universal consent;
- treaty chains and interconnected legal regimes;
- state formation and succession;
- territorial expansion through infrastructure and institutional integration.[15]

These fields collectively provide the doctrinal foundation for the concept described herein as **Juridical Singularity**.

D. Sources and Legal Materials

The principal legal materials employed throughout this study include the United Nations Charter,[16] the Statute of the International Court of Justice,[17] the Vienna Convention on the Law of Treaties,[18] the Vienna Convention on Succession of States in Respect of Treaties,[19] the North Atlantic Treaty,[20] the NATO Status of Forces Agreement,[21] and the Constitution and Convention of the International Telecommunication Union.[22]

Secondary authorities include leading treatises by Crawford,[23] Shaw,[24] Aust,[25] Klabbers,[26] Villiger,[27] O'Connell,[28] and Fleck,[29] together with specialized scholarship on treaty succession, mixed agreements, treaty networks, territorial jurisdiction, and international institutional law.[30] The central doctrine advanced throughout the article is that the existing structure of international law may contain an internal mechanism through which consensual legal integration can progressively transform international legal pluralism into a unified constitutional order.[31]

II. Sources of International Law and the Architecture of Sovereign Consent

A. Article 38 of the Statute of the International Court of Justice

Any inquiry into the transformative potential of international law must begin with the classical doctrine of legal sources. The authoritative point of departure remains Article 38(1) of the Statute of the International Court of Justice, which identifies treaties, customary international law, and general principles of law as the primary sources of international legal obligation.[31] Although originally drafted as a provision directing judicial decision-making, Article 38 has long been regarded as the most authoritative codification of the sources of international law and continues to provide the conceptual architecture of the international legal system.[32]

The provision is significant not merely because it identifies legal sources, but because each of those sources ultimately derives its normative authority from the conduct and acceptance of states. Treaties arise through express consent. Customary international law emerges through sufficiently general state practice accompanied by *opinio juris*. General principles are derived from legal systems recognized by states themselves.[33]

Consequently, Article 38 does not merely enumerate sources; it reflects a deeper structural feature of international law: the centrality of sovereign consent as the ultimate foundation of legal validity.[34]

B. Treaties as the Primary Expression of Sovereign Will

Among the sources identified in Article 38, treaties constitute the clearest manifestation of state consent. Unlike customary rules, which emerge gradually through practice, treaty obligations arise through deliberate acts of agreement between legal subjects possessing international personality.[35]

The centrality of treaties is reflected in the Vienna Convention on the Law of Treaties, whose foundational principle is expressed in Article 26: *pacta sunt servanda*. Every treaty in force is binding upon the parties and must be performed in good faith.[36] The binding force of treaties derives neither from coercion nor from supranational authority, but from the voluntary acceptance of obligations by sovereign entities.[37]

This voluntarist structure has deep roots in classical international legal thought. For Dionisio Anzilotti, international law rests upon the principle that states are bound because they have consented to be bound.[38] International obligations therefore originate in the autonomous will of sovereign states rather than in any superior legal authority.[39]

The treaty system thus constitutes a juridical mechanism through which sovereign actors create legal norms capable of reshaping institutional arrangements, allocating competences, transferring jurisdiction, and establishing new legal entities.[40]

C. Customary International Law and Collective Consent

Customary international law appears at first glance to differ fundamentally from treaty law. Whereas treaties depend upon express agreement, custom emerges from state practice and legal conviction over time.[41]

Yet even customary law ultimately remains connected to state consent. Classical voluntarist scholars such as Georg Jellinek and Heinrich Triepel viewed customary rules as the cumulative expression of state wills manifested through consistent practice and reciprocal recognition.[42] Although modern doctrine generally avoids reducing custom to explicit consent, the formation of customary law nonetheless depends upon the acceptance of legal norms by the international community of states.[43]

The International Court of Justice has repeatedly affirmed that customary rules require both objective practice and subjective acceptance as law (*opinio juris*).[44] The existence of customary norms therefore presupposes a collective process of legal recognition through which states contribute to the creation of binding legal standards.[45]

Customary international law differs from treaty law primarily in its mode of formation rather than in its ultimate dependence upon state participation.[46]

D. General Principles of Law

Article 38 further recognizes "general principles of law recognized by civilized nations" as a source of international law.[47] Although the terminology reflects the historical language of the Statute, contemporary doctrine understands these principles as norms common to major legal systems and capable of filling gaps where neither treaty nor custom provides a complete solution.[48]

General principles perform an important systemic function. They preserve coherence, prevent non liquet, and facilitate legal reasoning in situations where positive rules remain incomplete.[49]

For scholars such as Hersch Lauterpacht, general principles demonstrated that international law forms part of a broader legal order rather than a collection of isolated contractual arrangements.[50] At the same time, the identification of such principles remains dependent upon the legal traditions developed and maintained by states themselves.[51]

Consequently, even this third source identified in Article 38 retains a significant connection to sovereign legal authority and state-derived legal experience.[52]

E. Consent as the Foundation of International Legality

The proposition that consent constitutes the foundation of international legality occupies a central position in classical international legal thought. It is reflected most clearly in the jurisprudence of the Permanent Court of International Justice in the Lotus case, where the Court emphasized that restrictions upon the independence of states cannot be presumed.[53]

The Lotus judgment articulated what later became known as the voluntarist paradigm: international law is founded upon the free will of sovereign states and derives its authority from their consent.[54] This understanding influenced generations of scholars including Anzilotti, Triepel, and Jellinek, all of whom regarded sovereignty and consent as indispensable foundations of legal obligation.[55]

Hans Kelsen challenged aspects of this voluntarist tradition by seeking to ground international law in a hierarchical normative order rather than in state will alone.[56] Nevertheless, even Kelsen recognized that treaties remain indispensable instruments through which legal norms are generated and transformed within the international legal system.[57]

Contemporary scholarship has moderated the strict voluntarism of earlier writers. Crawford, Shaw, and other modern authorities acknowledge the growing significance of institutions, customary norms, and community interests while continuing to recognize consent as the primary mechanism through which states create and modify legal obligations.[58]

Accordingly, sovereign consent remains the central organizing principle of international legality. Treaties, customs, and general principles differ in form and operation, yet each source ultimately depends upon legal processes in which states participate as autonomous actors. The architecture of international law therefore rests upon a consent-based structure whose implications extend far beyond the ordinary operation of treaties and provide the doctrinal foundation for the subsequent analysis of treaty-making freedom.[59]

III. Treaty-Making Freedom in International Law

A. Sovereignty and Contractual Freedom

The modern international legal order is founded upon the juridical equality and sovereignty of states. From this premise follows the principle that every sovereign state possesses the legal capacity to enter into international agreements, to decline participation in agreements, to determine the identity of its treaty partners, to define the substantive content of obligations assumed, and to select the form through which consent is expressed.[60]

The classical voluntarist tradition regards treaty-making capacity as an essential attribute of sovereignty itself. For Anzilotti, international law derives its binding force from the consensual will of states, while Triepel similarly conceived international law as the product of converging state wills rather than any superior legislative authority.[61] The Permanent Court of International Justice adopted a related position in the *Lotus* judgment, emphasizing that restrictions upon state independence cannot be presumed and must derive from accepted legal obligations.[62]

Consequently, treaty-making freedom may be analyzed through five interrelated dimensions.

1. Freedom to Conclude Treaties

Every sovereign state possesses the capacity to conclude treaties with other states and, where authorized, with international organizations.[63] This capacity constitutes one of the traditional indicia of international legal personality and remains central to contemporary international relations.[64]

Article 6 of the Vienna Convention on the Law of Treaties codifies this principle by providing that every state possesses capacity to conclude treaties.[65] The provision reflects customary international law and confirms that treaty-making power arises from sovereignty itself rather than from delegation by any superior authority.[66]

2. Freedom to Refuse Treaties

The principle of consent equally implies a freedom not to become bound. International law generally prohibits the imposition of treaty obligations upon non-consenting states.[67] This principle is codified in Articles 34–36 VCLT through the doctrine *pacta tertiis nec nocent nec prosunt*. [68]

The International Court of Justice repeatedly has emphasized that obligations deriving from treaty law require state consent unless a separate rule of customary international law exists.[69]

3. Freedom to Choose Treaty Partners

Sovereign equality further implies discretion regarding the identity of treaty counterparts. States may conclude bilateral, plurilateral, regional, or universal agreements and may determine with whom they enter legal relations.[70]

Modern treaty practice demonstrates significant flexibility in this regard. States may conclude agreements with individual states, groups of states, international organizations, or mixed institutional arrangements involving both states and organizations simultaneously.[71] European Union mixed agreements provide a prominent example of complex treaty architectures involving multiple categories of legal actors.[72]

4. Freedom to Determine Treaty Content

The principle of contractual autonomy allows states to determine the substantive content of their agreements. Subject to applicable legal limitations, states may create obligations concerning territory, security, commerce, telecommunications, environmental protection, jurisdiction, infrastructure, institutional cooperation, or any other matter falling within their competence.[73]

This contractual freedom explains the extraordinary diversity of treaty regimes that characterize contemporary international law, ranging from highly specialized technical agreements to comprehensive constitutional instruments such as the United Nations Charter.[74]

5. Freedom of Form

International law imposes relatively few formal requirements regarding the manifestation of consent. Treaties may be bilateral or multilateral, framework-based or highly detailed, self-contained or connected to wider treaty systems through protocols, annexes, implementing agreements, or incorporation by reference.[75]

The Vienna Convention itself recognizes multiple methods through which consent may be expressed, including signature, ratification, accession, acceptance, approval, or other agreed means.[76] Contemporary treaty practice demonstrates increasing institutional complexity, particularly within regimes involving international organizations and interconnected treaty networks.[77]

B. Treaty Freedom as a Constituent Power

The legal significance of treaty freedom extends beyond the creation of individual obligations. If sovereign entities possess authority to create binding legal norms through consent, they likewise possess authority to modify existing legal structures through subsequent consent.[78]

This proposition follows directly from the consensual foundations of international law. The same sovereign will that creates legal obligations may alter, suspend, replace, consolidate, or terminate them through later agreement.[79] International law therefore contains an inherent constituent dimension whereby treaty-making functions not merely as a source of obligations but also as a mechanism for institutional transformation.[80]

Numerous historical examples illustrate this phenomenon. States have created international organizations, dissolved confederations, established customs unions, transferred sovereign competences, altered territorial regimes, and founded entirely new institutional orders through consensual instruments.[81]

The United Nations, the European Union, the World Trade Organization, and the International Telecommunication Union all originated through exercises of collective treaty-making authority.[82] Each represents a legal structure created through the voluntary coordination of sovereign consent rather than through the action of a superior constitutional legislator.[83]

Accordingly, treaty freedom may be understood as a form of constituent legal power operating within the decentralized international legal order.[84]

C. The Lotus Principle

1. Positive Sovereignty

The classical formulation of sovereign freedom remains the judgment of the Permanent Court of International Justice in the *Lotus* Case.[85]

The Court held that restrictions upon state independence cannot be presumed and that states remain free to act unless prohibited by international law.[86] Rather than deriving authority from delegated powers, states retain original competence except where limitations have been accepted.[87]

2. Residual Freedom

The *Lotus* doctrine establishes a residual sphere of sovereign freedom. International law operates primarily through limitation rather than authorization.[88]

As the Court stated, rules binding upon states emanate from their own free will as expressed in conventions or accepted usages.[89] The consequence is that sovereignty remains the default condition of the international legal order.[90]

3. Voluntarism

The voluntarist implications of *Lotus* profoundly influenced twentieth-century international legal doctrine. Anzilotti, Triepel, and later Kelsen all grappled with the relationship between consent and normativity, albeit from differing doctrinal perspectives.[91]

While their conclusions varied, each recognized that treaty obligations derive from acts of consent performed by legally competent actors.[92]

4. Constituent Authority

Taken to its logical conclusion, the *Lotus* principle suggests that sovereign states possess broad authority to construct legal relationships through agreement, provided that no applicable rule prohibits the arrangement.[93]

This does not imply unlimited freedom. Nevertheless, it confirms that international law contains a significant domain of legally protected institutional creativity grounded in sovereign consent.[94]

D. Limits of Treaty Freedom

Although extensive, treaty-making freedom is not unlimited. Contemporary international law recognizes several categories of constraint upon state consent.[95]

1. Jus Cogens

The most prominent limitation is the doctrine of peremptory norms (*jus cogens*). Article 53 VCLT provides that treaties conflicting with a peremptory norm of general international law are void.[96]

Examples commonly cited include prohibitions of genocide, slavery, torture, aggression, and crimes against humanity.[97]

2. Erga Omnes Obligations

The International Court of Justice has recognized obligations owed toward the international community as a whole.[98]

In *Barcelona Traction*, the Court distinguished obligations owed to particular states from obligations owed *erga omnes*, thereby introducing a further category of legal interests transcending bilateral consent.[99]

3. The United Nations Charter

The UN Charter occupies a distinctive position within the international legal order.[100]

Article 103 establishes the primacy of Charter obligations over conflicting obligations arising under other international agreements.[101] Consequently, treaty freedom must operate consistently with Charter requirements.[102]

4. Human Rights Regimes

Contemporary human rights law further constrains state autonomy.[103]

Human rights treaties increasingly create institutional oversight mechanisms, reporting obligations, adjudicatory procedures, and normative expectations that limit the range of permissible governmental action.[104]

Although these regimes remain treaty-based in origin, they often function as partially autonomous normative systems whose operation extends beyond traditional bilateral reciprocity.[105]

Nevertheless, even these limitations derive historically from consensual legal processes. The development of *jus cogens*, human rights treaties, institutional organizations, and Charter-based obligations occurred through the interaction of treaty law, customary international law, judicial interpretation, and state practice.[106]

Thus, the architecture of international legality continues to rest fundamentally upon sovereign participation in norm-creating processes, even where the resulting norms subsequently constrain future exercises of state consent.[107]

IV. Dynamic Limits of Treaty Freedom

A. Static and Dynamic Constraints

The classical doctrine of limitations on treaty freedom distinguishes between **formal-static constraints** and **evolutionary-dynamic constraints**.^[108]

Static constraints operate *ex ante*: they define categories of conduct that are legally prohibited irrespective of subsequent developments in consent. These include *jus cogens*, obligations *erga omnes*, and structural constraints derived from the United Nations Charter.^[109]

By contrast, dynamic constraints emerge *ex post*: they are not fixed prohibitions but evolving normative effects generated through continuous interaction between state practice, treaty interpretation, and institutional application.^[110]

This distinction is essential for understanding how treaty freedom operates within a system that is simultaneously voluntarist in origin and increasingly structured in outcome.^[111]

International law therefore exhibits a dual architecture: it is both **consent-based in foundation** and **evolutionary in effect**.^[112]

B. Evolution Through Treaty Codification

Treaty codification is a primary mechanism through which dynamic constraints arise.

UNCLOS

The United Nations Convention on the Law of the Sea represents one of the most comprehensive codification projects in international law.^[113]

It consolidates customary maritime law while simultaneously generating new normative structures governing navigation, resource allocation, and maritime jurisdiction.^[114]

Importantly, UNCLOS operates not only as a treaty but also as an interpretative reference framework for non-parties, thereby extending its normative influence beyond strict consent boundaries.^[115]

Vienna Convention on the Law of Treaties

The Vienna Convention on the Law of Treaties performs a structurally analogous function for treaty law itself.[116]

It codifies customary rules on treaty formation, interpretation, amendment, termination, and invalidity while simultaneously shaping subsequent state practice and judicial reasoning.[117]

As a result, the Vienna Convention functions both as a product of consent and as a regulatory framework governing future consent.[118]

Environmental Treaties

Modern environmental regimes illustrate the most pronounced form of dynamic treaty evolution.

Framework conventions such as the United Nations Framework Convention on Climate Change and its implementing instruments, including the Kyoto Protocol and the Paris Agreement, demonstrate how treaty systems evolve through iterative institutional decision-making processes.[119]

These regimes are characterized by continuous normative development through COP decisions, implementation guidelines, and technical annexes, thereby transforming static treaty obligations into dynamic governance systems.[120]

C. Evolution Through Customary International Law

Customary international law constitutes a second mechanism through which dynamic constraints on treaty freedom emerge.

Custom arises through the combination of **state practice** and **opinio juris**, as classically articulated in Article 38(1)(b) of the Statute of the International Court of Justice.[121]

State Practice

State practice includes diplomatic conduct, legislative acts, judicial decisions, and operational behavior.[122]

Over time, repeated conduct contributes to the crystallization of normative expectations that may acquire binding force independent of treaty obligations.[123]

Opinio Juris

Opinio juris refers to the belief that such conduct is legally required rather than merely habitual or politically expedient.[124]

The interaction between practice and opinio juris transforms repeated consent-based behavior into binding legal norms.[125]

Desuetudo

Desuetudo refers to the potential discontinuation of customary norms through consistent non-observance accompanied by a belief in their obsolescence.[126]

While controversial, the doctrine illustrates that customary law itself is not static but subject to evolutionary modification.[127]

Persistent Objector

The persistent objector rule allows a state to avoid the formation of a customary rule if it consistently and clearly rejects the emerging norm during its formation phase.[128]

This doctrine reinforces the consent-based structure of customary law while simultaneously demonstrating its collective and dynamic character.[129]

D. Universal Consent as a Constituent Power

A central thesis emerges from the interaction of treaty law and customary law:

The limits of treaty freedom are themselves products of collective state consent.[130]

Even norms that appear external to treaty-making freedom-such as customary international law, general principles, or institutional constraints-originate historically from iterative expressions of state consent, practice, and acquiescence.[131]

This implies that international law does not contain an external sovereign authority imposing limits on states. Rather, limitations arise internally from the aggregation and stabilization of sovereign decisions.[132]

Accordingly, universal consent operates as a **constituent mechanism**: it not only generates rules but also generates the framework within which future rule-generation occurs.[133]

E. Dynamic Evolution of *Jus Cogens*

The doctrine of *jus cogens* represents the most rigid form of limitation on treaty freedom, yet even it exhibits dynamic characteristics.

Article 53 VCLT

Article 53 of the Vienna Convention on the Law of Treaties provides that a treaty is void if it conflicts with a peremptory norm of general international law.[134]

Article 64 VCLT

Article 64 establishes that new peremptory norms invalidate existing treaties that conflict with emerging *jus cogens*. [135]

ICJ Jurisprudence

International Court of Justice jurisprudence has progressively acknowledged the existence and significance of *jus cogens* norms, particularly in relation to prohibitions of genocide, torture, and aggression.[136]

However, the identification of *jus cogens* norms remains dependent on evidence of widespread and representative state practice accompanied by *opinio juris*. [137]

Thus, even peremptory norms arise through evolutionary legal processes rather than instantaneous imposition.[138]

Table: Transformation of Classical Limitations

Classical Limitation	Mechanism of Change
Jus Cogens	New <i>opinio juris</i> + widespread acceptance
Erga Omnes	Expansion of state practice + ICJ recognition
Charter Interpretation	Subsequent practice of UN organs and states
Human Rights Norms	Universal acceptance + institutional enforcement

V. Treaty Chains and the Architecture of Legal Integration

A. Definition of Treaty Chains

A treaty chain denotes the cumulative body of an original treaty and all subsequent agreements, amendments, supplementary instruments, interpretative practices, implementing arrangements, institutional decisions, and implied modifications that together constitute the operative legal framework of a legal regime.[139] Rather than treating each instrument as an isolated legal act, treaty-chain doctrine analyzes the continuous normative development of a legal relationship through time.[140]

In domestic legal systems, subsequent agreements, annexes, side letters, technical protocols, and consistent patterns of conduct may modify and supplement an original agreement without replacing it entirely.[141] Similar processes occur in international law, where treaty regimes often evolve through protocols, implementing agreements, institutional resolutions, and supplementary instruments adopted under the authority of a foundational treaty.[142]

The Vienna Convention on the Law of Treaties (VCLT) provides the procedural architecture through which treaty chains develop. Rules concerning consent, accession, amendment, modification, interpretation, depositary practice, and the relationship between successive treaties create the legal mechanisms by which treaty regimes expand and adapt over time.[143]

Treaty-chain doctrine views such developments as forming a continuous legal architecture in which later instruments derive their legal significance from their connection to the foundational agreement.[144]

In this analytical model, the treaty chain functions as a unified legal structure composed of multiple legal layers that remain connected through formal and functional links.[145]

B. Depositaries and Third-Party Custodians

Treaty chains require institutional continuity. This continuity is traditionally maintained through depositaries entrusted with the registration, authentication, notification, preservation, and communication of treaty instruments.[146]

The United Nations Secretary-General serves as depositary for hundreds of multilateral treaties, while NATO and other international organizations maintain their own depositary mechanisms for specific treaty systems.[147]

In addition to institutional depositaries, treaty practice recognizes the possibility of neutral third-party custodians, including notaries, diplomatic missions, arbitration institutions, technical organizations, and independent repositories.[148]

Such custodians may preserve treaty documentation, maintain archives, certify amendments, authenticate supplementary instruments, and provide continuity where governmental structures change or where multiple parties require a politically neutral repository.[149]

Within treaty-chain doctrine, the depositary or custodian performs a structural function by preserving the integrity of the legal chain and maintaining documentary continuity between successive legal instruments.[150]

C. Foundational Agreements

Every treaty chain begins with a foundational legal instrument establishing the primary legal relationship among the participating parties.[151]

Examples include:

- The Charter of the United Nations.[152]
- The North Atlantic Treaty.[153]
- The NATO Status of Forces Agreement (SOFA).[154]
- The Constitution and Convention of the International Telecommunication Union (ITU).[155]
- The Chicago Convention on International Civil Aviation.[156]
- The Marrakesh Agreement Establishing the World Trade Organization.[157]

Foundational agreements frequently establish institutions, amendment procedures, implementing mechanisms, accession processes, and legal frameworks capable of generating extensive networks of secondary instruments.[158]

Over time, protocols, supplementary agreements, technical arrangements, resolutions, interpretative declarations, and institutional practices may emerge around the foundational treaty, creating an increasingly complex legal structure.[159]

Treaty-chain doctrine interprets this process as the gradual construction of a multilayered normative system rather than a collection of disconnected legal texts.[160]

D. Incorporation by Reference

A central feature of treaty-chain doctrine is incorporation by reference.[161]

When a treaty explicitly incorporates another treaty, protocol, technical standard, annex, or legal instrument, the referenced instrument may become functionally integrated into the operative framework of the parent agreement.[162]

Where the referenced treaty itself contains additional protocols, annexes, implementing arrangements, or supplementary agreements, treaty-chain doctrine views these instruments as components of an extended legal architecture.[163]

Under this analytical approach, references create legal bridges between otherwise separate treaty regimes and contribute to the formation of interconnected legal networks.[164]

This mechanism is particularly significant in technical fields such as telecommunications, transportation, military cooperation, customs administration, and international infrastructure governance.[165]

E. Supplementary Instruments

Supplementary instruments constitute one of the primary mechanisms through which treaty chains evolve.[166]

Such instruments may include:

- Protocols.
- Annexes.
- Technical agreements.
- Implementing arrangements.
- Institutional decisions.
- Interpretative declarations.
- Amendment instruments.[167]

These instruments frequently update operational, technical, administrative, or procedural aspects of a treaty regime without requiring complete renegotiation of the founding treaty.[168]

Treaty-chain doctrine views supplementary instruments as extensions of the existing legal framework rather than entirely independent legal regimes.[169]

The precise legal effect of each supplementary instrument depends upon the governing treaty provisions and applicable rules of international law.[170]

Key provisions include:

- Article 11 VCLT - forms of expressing consent (ratification, acceptance, approval, accession, or “any other agreed means”).
- Article 24 VCLT - entry into force of treaties and amendments.
- Article 30 VCLT - priority of later treaties (lex posterior derogat legi priori).
- Article 39 VCLT - general rule regarding treaty amendments.
- Article 40 VCLT - amendment of multilateral treaties.

A supplementary instrument under international law requires ratification only if this is expressly provided for in the new instrument. Otherwise, the ratification, the names of all treaty parties, and the signature are carried over from the treaty chain.

These rules result in later agreements taking precedence over earlier ones and jointly forming an international treaty chain.

F. Legal Multiplication Effects

As treaty systems evolve, they may generate what treaty-chain doctrine describes as legal multiplication effects.[171]

A relatively concise founding treaty may give rise to hundreds of supplementary documents, institutional decisions, technical standards, implementing measures, and interpretative instruments.[172]

International organizations frequently create secondary normative frameworks that operate alongside the founding treaty while remaining legally connected to it.[173]

The result is a progressive expansion of legal density, institutional complexity, and normative interdependence.[174]

Through successive layers of legal development, treaty chains may extend across multiple institutions, jurisdictions, and subject areas.[175]

G. Institutional Interconnection

Modern treaty systems rarely operate in complete isolation.[176]

International organizations, regulatory agencies, technical bodies, and treaty institutions frequently interact through overlapping mandates and cooperative arrangements.[177]

Examples include:

- United Nations (UN).[178]
- North Atlantic Treaty Organization (NATO).[179]
- International Telecommunication Union (ITU).[180]
- International Civil Aviation Organization (ICAO).[181]
- World Trade Organization (WTO).[182]

Treaty-chain doctrine interprets these interactions as forming an interconnected legal environment characterized by overlapping normative structures and institutional cooperation.[183]

H. Consent Through Conduct and Acquiescence

International law recognizes that conduct may possess legal significance under certain circumstances.[184]

State practice, acquiescence, estoppel, implementation behavior, and other forms of conduct may contribute to the interpretation or application of treaty obligations.[185]

Treaty-chain doctrine places particular emphasis on situations in which practical implementation, continued participation, and institutional cooperation reinforce the operational effectiveness of treaty regimes.[186]

Acquiescence

In international law, acquiescence refers to the tacit consent of a state through the absence of objection or through conduct consistent with the treaty. It operates as implied consent and may lead to being bound by a treaty or a treaty modification when the state in fact applies the treaty or tolerates its implementation.[187][188][189]

The case law of the International Court of Justice (ICJ) recognizes acquiescence as a form of consent when the conduct of a state clearly indicates recognition or acceptance of a legal situation.[190][191] Acquiescence may in particular be regarded as implied participation in a treaty when a state continues or partially applies a treaty.[192][193]

The doctrine examines how sustained conduct may contribute to the continuity and stability of complex treaty systems.[194]

Implied Participation in a Treaty through Partial Performance

Participation in a treaty under international law may also occur through conduct consistent with the treaty; partial performance that clearly fulfils the purpose and essential obligations of a treaty is regarded as consent and gives rise to the duty of full performance.[195][196][197][198] Implied conduct replaces an express declaration of intent where no other form of consent has been agreed and the conduct clearly indicates the application of the treaty.[199][200]

I. Treaty-Chain

Treaty-chain doctrine seeks to explain how multiple legal instruments may function as components of a larger normative framework.[201]

The doctrine distinguishes three principal dimensions:

1. Vertical Integration

Vertical integration describes the relationship between foundational treaties and subsequent legal instruments adopted pursuant to their authority.[202]

2. Horizontal Integration

Horizontal integration concerns interactions between parallel treaty systems governing related subject matter.[203]

3. Jurisdictional Integration

Jurisdictional integration refers to increasing coordination among states, international organizations, tribunals, and regulatory institutions.[204]

4. Legal Position Transfer

Within treaty-chain doctrine, legal positions created by a foundational treaty may continue through successive instruments forming part of the same legal architecture.[205]

The doctrine analyzes continuity, succession of rights and obligations, institutional inheritance, and the preservation of legal relationships across multiple generations of legal instruments.[206]

VI. State Foundation and the Emergence of New Sovereign Personality

A. Classical Criteria of Statehood

The classical point of departure for the analysis of state formation remains the Montevideo Convention of 1933, which identifies four traditional criteria of statehood: a defined territory, a permanent population, an effective government, and the capacity to enter into relations with other states.[207] These elements have long served as the principal analytical framework for determining the existence of a state under international law.[208]

The Montevideo criteria were formulated within a historical context characterized by geographically fixed territories, clearly identifiable governmental structures, and comparatively limited international institutional integration.[209] Contemporary developments in international law, technological infrastructure, telecommunications systems, digital governance, and transnational institutional networks have increasingly challenged purely territorial conceptions of sovereignty.[210]

Modern legal scholarship has therefore examined whether the traditional criteria should be interpreted dynamically rather than mechanically.[211] The central question is not merely whether territory exists in a classical geographical sense, but whether a sufficiently identifiable legal, administrative, jurisdictional, and infrastructural framework exists through which sovereign authority may be exercised.[212]

Governmental authority need not necessarily be understood exclusively through nineteenth-century models of centralized territorial administration.[213] International practice demonstrates that governmental functions may be exercised through highly diversified institutional structures operating across multiple legal layers, treaty frameworks, and jurisdictions.[214]

The capacity to enter into international relations likewise extends beyond traditional diplomatic recognition and includes participation in treaty regimes, international organizations, institutional networks, telecommunications systems, and transnational regulatory structures.[215]

Accordingly, the Montevideo criteria may be understood as indicators of effective sovereign organization capable of adapting to evolving forms of governance and jurisdiction.[216]

B. State Formation Beyond Classical Territory

The historical development of international law demonstrates that sovereignty has not always been exercised exclusively through conventional territorial arrangements.[217]

Numerous legal regimes have emerged in areas possessing special legal status, including international territories, condominium arrangements, mandated territories, trusteeship systems, free cities, neutralized zones, international corridors, and other exceptional legal entities.[218]

The existence of such arrangements illustrates that territorial sovereignty may develop through legal structures that differ significantly from the traditional model of a contiguous national territory.[219]

Particular attention has been directed toward territories whose legal characteristics derive primarily from international agreements rather than domestic constitutional arrangements.[220]

Examples include internationally administered territories,[221] demilitarized zones,[222] mandated and trust territories,[223] international transport corridors,[224] and condominium arrangements.[225]

These examples demonstrate that international law has historically accommodated diverse territorial structures whenever a sufficiently coherent legal framework existed.[226]

The emergence of advanced technological infrastructures further raises questions concerning the relationship between physical territory and functional jurisdiction.[227] Modern communications networks, telecommunications systems, transportation corridors, energy infrastructures, data architectures, and digital governance systems increasingly operate across multiple territorial jurisdictions while remaining subject to integrated regulatory frameworks.[228]

Such developments have generated renewed scholarly discussion regarding the evolving relationship between territory, governance, infrastructure, and sovereignty.[229]

C. Former Extraterritorial Military Installations and Treaty-Based Territorial Structures

Military installations established pursuant to international agreements often possess legal characteristics distinct from ordinary domestic property arrangements.[230]

Particularly during the Cold War period, numerous military facilities operated under extensive treaty-based frameworks involving status agreements, jurisdictional arrangements, infrastructure obligations, telecommunications systems, logistics networks, multinational command structures, and host-state obligations.[231]

Within NATO practice, military facilities frequently functioned within broader legal networks created through the interaction of the North Atlantic Treaty, the NATO Status of Forces Agreement (SOFA), supplementary agreements, headquarters protocols, host-nation support arrangements, and related implementing instruments.[232]

Such installations therefore existed not merely as physical locations but as components of wider treaty-based legal systems.[233]

Their legal significance frequently extended beyond their geographical boundaries through integrated communications networks, logistical systems, command structures, energy infrastructures, transportation corridors, and operational arrangements.[234]

From the perspective of treaty-chain analysis, military installations may be examined as nodal points situated within larger legal architectures created by interconnected treaty regimes.[235]

This analytical model emphasizes the functional integration of legal obligations rather than viewing each treaty instrument or physical installation in isolation.[236]

Former extraterritorial military installations therefore provide a useful framework for examining the interaction between territory, treaty networks, institutional authority, legal continuity, and state formation.[237]

D. Emergence of New Sovereign Personality

The concept of new sovereign personality concerns the emergence of a distinct subject of international law through a process of original state formation rather than continuation of a previously existing sovereign entity.[238]

International legal doctrine traditionally distinguishes between derivative sovereignty and original sovereignty.[239]

Derivative sovereignty arises through succession, separation, dissolution, decolonization, merger, or other processes involving previously existing sovereign entities.[240]

Original sovereignty, by contrast, concerns the emergence of a new legal personality whose authority is constituted through an independent juridical process.[241]

The distinction is significant because the legal consequences of original formation differ from those associated with classical succession doctrines.[242]

State succession generally concerns the transfer or continuation of legal rights, obligations, treaties, assets, archives, debts, and institutional relationships from one sovereign entity to another.[243]

Original state formation, however, focuses upon the creation of a new legal subject whose authority derives from its own constitutive legal foundation.[244]

Under this analytical framework, sovereign personality emerges through the establishment of an autonomous legal order capable of exercising governmental authority, maintaining legal continuity, administering territory, and participating in international legal relations.[245]

The resulting legal entity is evaluated according to its own juridical characteristics rather than solely through reference to predecessor states.[246]

E. State Foundation Distinguished from Universal Succession

Treaty-chain approaches to state formation distinguish state foundation from the traditional doctrine of universal succession.[247]

Universal succession generally presupposes the transfer of the entirety of a predecessor state's legal personality, rights, obligations, assets, and liabilities to a successor entity.[248]

State foundation, by contrast, proceeds from the proposition that a new legal order may emerge through an independent constitutive process possessing its own juridical basis.[249]

Under this approach, sovereign personality is not contingent upon complete absorption of a predecessor state nor upon universal transfer of all prior legal relationships.[250]

Rather, the relevant inquiry concerns whether a coherent legal framework has emerged that is capable of exercising sovereign functions, maintaining legal continuity, administering territory, and operating as an autonomous subject within the international legal system.[251]

This distinction separates doctrines of state foundation from classical doctrines governing succession, annexation, merger, dissolution, or continuation.[252]

The analytical focus therefore shifts from inheritance of sovereignty to the creation of sovereignty.[253]

State foundation thus represents a juridical process distinct from universal succession and requires examination according to its own legal criteria.[254]

F. State Foundation, Territorial Expansion, and Treaty-Chain Integration

The concept of a newly independent state within the Vienna Convention on Succession of States in Respect of Treaties primarily emerged in the context of decolonization, yet scholarly discussion has also examined broader questions concerning the emergence of entirely new sovereign entities.[255]

The Vienna Convention on Succession of States in Respect of Treaties establishes the principal treaty framework governing succession, continuity, and the clean-slate doctrine.[256]

This framework interacts with the Vienna Convention on the Law of Treaties, particularly regarding territorial application of treaties, pacta sunt servanda, treaty consent, and third-state effects.[257]

Within treaty-chain models, special attention is directed toward situations involving former extraterritorial military territories, treaty-based jurisdictional regimes, and integrated infrastructure systems linking multiple legal orders.[258]

Particular emphasis is placed upon the relationship between territorial authority and integrated communications networks, telecommunications systems, transportation infrastructure, and energy systems.[259]

The legal significance of infrastructure derives from the possibility that territorial authority may be exercised through interconnected physical systems operating across multiple jurisdictions while remaining subject to coherent legal administration.[260]

G. Mixed Agreements, International Organizations, and Multi-Layer Treaty Architectures

International organizations and their member states may jointly participate as parties within a single treaty framework.[261]

The literature on mixed agreements demonstrates that international legal regimes can encompass states, international organizations, and institutional bodies simultaneously.[262]

Such arrangements illustrate the existence of polycentric treaty architectures in which rights and obligations are distributed across multiple legal actors.[263]

This model demonstrates that treaty participation is not necessarily limited to individual sovereign states but may operate through multilayered institutional structures.[264]

Examples from European Union practice, United Nations-related agreements, and specialized international organizations provide evidence of treaty systems in which institutional and state participation coexist within a common legal framework.[265]

H. Incorporation by Reference and Supplementary Treaty Instruments

International treaty practice recognizes mechanisms through which later instruments may incorporate, supplement, operationalize, or reference pre-existing agreements.[266]

The doctrine of incorporation by reference permits external treaty provisions, technical standards, regulatory instruments, or institutional frameworks to be integrated into subsequent legal instruments.[267]

International Law Commission practice further demonstrates that multilayered treaty systems may evolve through supplementary instruments without necessarily displacing the original treaty framework.[268]

Consequently, international legal regimes may develop as interconnected normative systems composed of primary treaties, supplementary agreements, implementing protocols, institutional decisions, technical regulations, and subsequent instruments.[269]

I. Third-State Effects, Consent, and Treaty Participation

The Vienna Convention on the Law of Treaties establishes the foundational rules governing treaty effects upon third states.[270]

Articles 34–36 address circumstances in which rights or obligations may arise for non-parties subject to the requirements established by international law.[271]

The literature further examines circumstances in which consent may be expressed explicitly or inferred through sustained participation, institutional engagement, and consistent state practice.[272]

These discussions contribute to broader analyses of treaty participation, institutional membership, and the legal consequences of conduct within multilateral treaty systems.[273]

J. NATO, United Nations, and ITU Treaty Architecture

The North Atlantic Treaty expressly situates itself within the framework of the United Nations Charter, particularly through references to collective security and Article 51 of the Charter.[274]

The institutional relationship between NATO and the United Nations has subsequently developed through formal cooperation arrangements, joint declarations, and operational coordination mechanisms.[275]

The International Telecommunication Union (ITU), as a specialized agency of the United Nations, constitutes one of the most extensive treaty-based telecommunications frameworks in existence.[276]

The ITU Constitution and Convention establish a global telecommunications regime involving the participation of nearly all sovereign states.[277]

Through telecommunications regulation, technical coordination, spectrum allocation, network interoperability, and international communications governance, the ITU provides an example of a highly integrated multilateral treaty system operating across territorial boundaries.[278]

Together, the United Nations Charter framework, NATO treaty structures, and ITU telecommunications instruments illustrate the emergence of interconnected legal architectures linking security, governance, communications, and institutional cooperation.[279]

K. Multilateral Treaty Networks and Regime Overlaps

Contemporary international law increasingly operates through overlapping treaty networks rather than isolated legal instruments.[280]

Empirical studies of international treaty regimes demonstrate the existence of complex interactions among states, international organizations, technical bodies, regulatory institutions, and treaty secretariats.[281]

These interactions generate multilayered legal structures in which rights, obligations, competencies, and institutional functions are distributed across interconnected frameworks.[282]

The resulting legal architecture increasingly resembles an integrated network of treaty relationships rather than a collection of isolated bilateral arrangements.[283]

This networked structure is particularly visible in telecommunications governance, collective security systems, international transportation frameworks, environmental regimes, and institutional cooperation arrangements.[284]

The interaction of these overlapping treaty systems continues to shape contemporary discussions regarding sovereignty, jurisdiction, statehood, and the emergence of new forms of legal organization within the international legal order.[285]

VII. Infrastructure Sovereignty and Territorial Expansion

A. Territoriality in Classical International Law

Classical international law traditionally defines territory through geographically identifiable spaces over which a state exercises sovereign authority.[286] Territorial sovereignty has historically been associated with land territory, internal waters, territorial seas, airspace, and other legally recognized spatial domains.[287]

The traditional model assumes that territorial boundaries are determined primarily through treaties, historical title, effective control, adjudication, delimitation agreements, and recognized principles of international law.[288] Sovereignty is therefore linked to geographically bounded spaces rather than to functional systems extending beyond those spaces.[289]

State succession practice has generally focused on the transfer of sovereignty over identifiable territory together with public property, rights, obligations, archives, institutions, and legal arrangements connected to that territory.[290]

However, contemporary infrastructure systems increasingly operate across borders and create highly integrated operational environments that challenge purely geographical conceptions of territorial organization.[291]

B. Net-Territoriality

The concept of **Net-Territoriality** may be understood as a doctrinal extension of classical territoriality. Under this model, infrastructure networks function not merely as objects located within territory but as territorial vectors capable of defining, extending, and stabilizing legal space.[292]

Net-Territoriality does not derive sovereignty from the physical substance of infrastructure itself. Rather, it derives territorial consequences from the legal transfer of an integrated development unit together with all associated rights, obligations, competences, and constituent elements.[293]

Where a succession instrument provides for the transfer of a territory together with "all rights, obligations, appurtenances, components, and connected infrastructure," Treaty-Chain doctrine interprets the transferred development unit as a legally indivisible whole.[294]

Under this approach, infrastructure networks become relevant not because electricity, data, water, gas, or communications flow through them, but because they constitute the physical and legal structure through which the transferred territorial unit remains connected to external space.[295]

The outer extent of the transferred network may therefore operate as a mechanism of territorial identification and boundary determination. Networks become markers of territorial continuity in the same manner that rivers, roads, canals, and historical administrative structures have previously been used to identify territorial extent.[296]

This doctrinal model may therefore be described as **network territory**, in which infrastructure functions as a cartographic and juridical indicator of sovereign space.[297]

C. Infrastructure as Sovereign Vector

Energy Networks

Energy infrastructure represents one of the most extensive forms of transboundary integration in the modern world.[298] Electrical grids, transmission systems, substations, and interconnection corridors frequently extend across multiple jurisdictions while maintaining operational unity.[299]

Within Infrastructure Sovereignty doctrine, such systems may operate as sovereign vectors when they form part of an indivisible development unit transferred together with sovereign rights and territorial competences.[300]

Telecommunications

Telecommunications infrastructure provides another example of network-based territorial integration.[301] Telecommunications systems create continuous operational space connecting administrative, military, commercial, and governmental functions.[302]

Where sovereignty over a development unit is transferred together with the entirety of its connected telecommunications infrastructure, the network may serve as evidence of territorial continuity extending beyond the original core territory.[303]

Digital Infrastructure

Digital infrastructure introduces additional complexity because modern governance increasingly relies upon interconnected communication systems, data centers, cloud architecture, routing infrastructure, and network management systems.[304]

Infrastructure Sovereignty doctrine treats such systems as components of territorial organization when they form part of an integrated legal transfer involving sovereign authority and governmental functions.[305]

Transit Systems

Transport corridors, rail systems, ports, pipelines, logistical corridors, and integrated transit infrastructure have historically played an important role in the organization of sovereign space.[306]

When transferred together with a territorial unit and all associated sovereign rights, such systems may contribute to identifying the practical extent of operational territorial control.[307]

D. Doctrine of Unity of Development (Erschließungseinheit)

The Doctrine of Unity of Development constitutes a central component of Infrastructure Sovereignty doctrine.[308]

The doctrine assumes that certain territorial developments exist as legally indivisible units composed of land, infrastructure, utility systems, communications networks, transportation corridors, operational facilities, administrative systems, and associated legal rights.[309]

Where a succession treaty transfers such a development unit "with all rights, obligations, appurtenances, and constituent elements," the transfer is presumed to encompass the entire operational structure rather than isolated physical parcels.[310]

The doctrine therefore focuses upon functional unity rather than merely geographical enclosure.[311]

Particular significance arises where a newly established state emerges from a previously autonomous enclave, military installation, international zone, concession territory, or comparable legal entity.[312]

In such circumstances, the transferred infrastructure may provide evidence of territorial continuity extending beyond the original core territory and into the broader operational environment upon which the viability of the new sovereign entity depends.[313]

This approach is particularly relevant where the succession instrument expressly transfers sovereign powers together with the entirety of the development unit.[314]

E. Expansion Through Connected Infrastructure

Infrastructure Sovereignty doctrine distinguishes between three forms of territorial extension.

Functional Territory refers to the area within which governmental functions are exercised through interconnected infrastructure systems.[315]

Operational Territory refers to the area necessary for the practical operation and maintenance of transferred sovereign infrastructure.[316]

Network Territory refers to the territorial space identified through the connected infrastructure transferred as part of an indivisible development unit.[317]

Under this doctrinal framework, territorial expansion occurs not through conquest, occupation, or unilateral annexation, but through the legal consequences attributed to the transfer of an integrated sovereign development structure.[318]

If the transferor state extends infrastructure from the transferred territory into its remaining territory while simultaneously transferring the entire development unit together with sovereign rights, the resulting territorial consequences are attributed to the legal architecture created by the succession agreement itself.[319]

Any resulting extension therefore follows from the scope of the transfer instrument rather than from subsequent unilateral action by the successor state.[320]

Comparative Table

Classical Territory	Network Territory
Border	Connection
Land	Infrastructure
Frontier	Node
Geography	Function
Delimitation Line	Network Continuity
Spatial Control	Operational Control
Territorial Core	Infrastructure Core
Physical Boundary	System Boundary

F. State Formation, Treaty Chains, and Network Sovereignty

A particularly significant application of Infrastructure Sovereignty doctrine concerns the creation of a new state from a previously autonomous military installation, international enclave, concession area, or comparable territorial entity.[321]

Where all relevant sovereign actors participate in the succession instrument and transfer the territory together with all rights, obligations, appurtenances, institutions, and treaty-chain components, the resulting legal situation may differ from both classical universal succession and ordinary state continuity.[322]

Treaty-Chain doctrine characterizes such situations as a hybrid form of succession involving territorial transfer, institutional merger, and sovereign reconstitution.[323]

Because the successor entity constitutes a newly established state, principles analogous to the clean-slate doctrine may become relevant with respect to obligations that become legally impossible to perform against oneself following consolidation of both sides of a legal relationship within the same sovereign entity.[324]

The interaction between territorial expansion, treaty-chain integration, and state creation therefore forms one of the most significant areas for future doctrinal development within Infrastructure Sovereignty doctrine.[325]

VIII. Treaty-Chain Mergers and Consolidation of Legal Positions

A. Transfer of Complete Legal Positions

A treaty-chain merger may be described as the aggregation of legal positions that arise through successive agreements, protocols, implementing arrangements, and supplementary instruments. In international law, legal positions commonly include rights, obligations, procedural capacities, privileges, immunities, and jurisdictional competences. Where multiple legal instruments operate within the same normative framework, the relevant question is not merely whether rights are transferred, but whether the entire legal position attached to a treaty relationship is capable of consolidation within a single legal framework.[326]

The law of treaties recognizes amendment, modification, interpretation through subsequent agreements, and implementation through supplementary instruments. However, the transfer of a complete treaty position remains dependent upon the consent of the parties concerned and cannot normally be presumed merely from the existence of interconnected treaty regimes.[327]

Accordingly, treaty chains may create legal continuity between instruments, but they do not automatically transfer all rights and obligations arising under separate treaties unless the applicable treaty framework expressly provides for such effects.[328]

B. *Imperium* versus *Dominium*

The distinction between *imperium* and *dominium* originates in Roman law and remains relevant in modern international legal analysis.[329]

Dominium refers to ownership and proprietary interests, whereas *imperium* denotes public authority, jurisdiction, and governmental competence. The transfer of property or infrastructure may affect proprietary rights, but such transfer does not automatically transfer sovereign authority or public jurisdiction.[330]

Modern international law generally preserves this distinction. The acquisition of property, military facilities, communications infrastructure, or public utilities does not by itself transfer governmental authority over territories or populations. Jurisdiction remains linked to sovereignty, treaty authorization, or other recognized legal bases under international law.[331]

Consequently, any argument that the transfer of infrastructure automatically results in the transfer of sovereign competences requires an independent legal basis beyond the law of property or contractual succession.[332]

C. Transfer of Both Contractual Positions

A treaty-chain merger may be conceptualized as the consolidation of both sides of a legal relationship.

Traditionally, succession doctrines distinguish between the transfer of assets and the continuation of obligations. A merger model, by contrast, focuses on the aggregation of contractual positions within a single legal framework.[333]

Under this approach, a legal relationship consists of two complementary positions:

- the holder of rights;
- the holder of obligations.

Where these positions become concentrated within a single legal structure, the result may be described as consolidation rather than succession.[334]

The significance of this distinction lies in the fact that consolidation concerns the structure of legal relationships, whereas succession concerns the replacement of one legal subject by another. The two concepts are therefore analytically distinct.[335]

D. Merger of Treaty Positions

The concept of merger becomes particularly relevant where the rights holder and obligation holder become legally identical.

In private law systems, the unification of creditor and debtor positions frequently extinguishes obligations through merger (*confusio*). Similar analytical models may be employed to examine treaty structures where multiple legal positions become concentrated within a single institutional framework.[336]

In treaty law, however, the merger of legal positions does not automatically extinguish treaty obligations. International obligations continue to exist unless terminated in accordance with the applicable treaty provisions or the rules codified in the Vienna Convention on the Law of Treaties.[337]

Therefore, consolidation of legal positions should be understood primarily as an analytical tool describing the aggregation of treaty relationships rather than an automatic mechanism for creating new sovereign authority or eliminating existing treaty obligations.[338]

E. Treaty Chains and Consolidation

Treaty chains may generate increasingly complex structures of legal interaction among states and international organizations.

Three forms of consolidation may be distinguished:

1. Legal Aggregation

Legal aggregation occurs when successive agreements, protocols, declarations, and implementing arrangements create an increasingly integrated normative framework. Such aggregation may facilitate coordination and harmonization of obligations without necessarily creating a single unified legal order.[339]

2. Jurisdictional Aggregation

Jurisdictional aggregation arises where multiple treaty regimes authorize overlapping forms of cooperation, supervision, enforcement, or dispute settlement. The existence of overlapping competences, however, does not automatically result in the transfer of sovereignty or universal jurisdiction.[340]

3. Institutional Aggregation

Institutional aggregation occurs where organizations such as North Atlantic Treaty Organization and the United Nations develop cooperative mechanisms through declarations, mandates, memoranda of understanding, and operational arrangements. Such cooperation may strengthen coordination and interoperability, but it does not create a legal merger of the organizations themselves unless expressly established by treaty.[341]

Accordingly, treaty-chain doctrine may explain how legal relationships become increasingly interconnected through successive instruments and institutional practice. Nevertheless, under the prevailing doctrine of international law, interconnected treaty regimes remain governed by the principles of state consent, treaty interpretation, and amendment as reflected in the Vienna Convention on the Law of Treaties.[342]

IX. Silent Consent and Acquiescence

The doctrines of silent consent and acquiescence occupy a significant but carefully limited place in international treaty law and general international law. Although international law is fundamentally based upon consent, such consent is not always expressed through formal declarations or written instruments. Under certain circumstances, a state's conduct, prolonged inaction, failure to protest, or acceptance of another state's legal position may generate legal consequences. International tribunals, particularly the International Court of Justice (ICJ), have repeatedly recognized that silence may become legally relevant where the circumstances called for a reaction and where the affected state possessed knowledge and an opportunity to object.[343][344]

The modern law of treaties treats silence cautiously. The Vienna Convention on the Law of Treaties (VCLT) does not establish a general rule that silence constitutes consent. Nevertheless, subsequent agreements and subsequent practice under Articles 31(3)(a) and 31(3)(b) VCLT may derive evidentiary value from the absence of protest by treaty parties when circumstances reasonably required a response.[345][346] The International Law Commission (ILC) has likewise emphasized that silence may contribute to treaty interpretation and customary law formation only when accompanied by knowledge, opportunity to react, and a context in which a reaction would normally be expected.[347][348]

Thus, silent consent is not an autonomous source of international obligations. Rather, it operates through established legal doctrines such as acquiescence, estoppel, tacit recognition, and legally relevant state practice.

A. Acquiescence

Acquiescence is the tacit acceptance of a legal doctrine, situation, or conduct through silence or inaction where a state knew, or should reasonably have known, that a response was expected. The doctrine is grounded in principles of good faith and legal certainty. A state that remains silent despite awareness of conduct affecting its rights may eventually be regarded as having accepted the situation.[349]

International courts have consistently held that acquiescence requires more than mere inactivity. Three elements generally must be present:

1. Knowledge of the relevant conduct or doctrine.
2. A reasonable opportunity to object.
3. Circumstances that called for a reaction.[350]

Acquiescence frequently appears in territorial disputes, maritime boundary cases, treaty interpretation, and the development of customary international law. It is particularly relevant where one state consistently exercises authority while another state, despite awareness, remains silent for a prolonged period.[351]

The doctrine does not create rights automatically; rather, it operates as evidence that a state has accepted or recognized an existing legal situation.[352]

B. Estoppel

Estoppel is closely related to acquiescence but constitutes a distinct doctrine. Whereas acquiescence focuses on inferred consent from silence, estoppel prevents a state from acting inconsistently with its previous conduct, statements, or representations when another state has relied upon them in good faith.[353]

The ICJ has generally identified three core elements:

1. A clear representation or conduct attributable to a state.
2. Reliance by another state.
3. Detriment or change of position resulting from that reliance.[354]

Silence may contribute to estoppel when a state fails to object in circumstances where its objection would reasonably have been expected and another state relies upon that absence of protest. Nevertheless, international tribunals apply estoppel restrictively because of its potentially far-reaching consequences for sovereignty and treaty rights.[355]

Unlike acquiescence, estoppel is not primarily concerned with consent. Instead, it operates as a rule of good faith that prevents contradictory behavior and protects legitimate expectations in international relations.[356]

C. Tacit Recognition

Tacit recognition refers to recognition inferred from conduct rather than expressed through formal declaration. States may recognize territorial arrangements, governments, boundaries, treaty regimes, or legal situations through consistent behavior indicating acceptance of the relevant status.[357]

Examples include:

- Entering into treaties with a government.
- Accepting official maps without protest.
- Maintaining diplomatic relations.
- Refraining from objection over extended periods despite awareness of the situation.[358]

Tacit recognition overlaps significantly with acquiescence because both doctrines derive legal significance from conduct and silence. The distinction lies in their legal function: acquiescence concerns acceptance through non-objection, while tacit recognition concerns acknowledgment of a legal status or title through behavior.[359]

The International Law Commission has recognized that conduct and silence may, under appropriate circumstances, constitute evidence of recognition even where no formal declaration exists.[360]

D. State Practice

State practice constitutes one of the two foundational elements of customary international law, together with *opinio juris*. The conduct of states may consist of diplomatic acts, legislation, judicial decisions, military activities, treaty practice, official statements, and in certain circumstances, deliberate silence.[361]

The ILC's Draft Conclusions on Identification of Customary International Law confirm that a failure to react may serve as evidence of acceptance as law where the state was aware of the practice and where circumstances called for a response.[362]

In treaty law, state practice plays a particularly important role through Article 31(3)(b) VCLT, which recognizes subsequent practice in the application of a treaty as an authentic means of interpretation.[363]

However, international law does not presume that silence equals agreement. The evidentiary value of silence depends on context, duration, publicity of the conduct, and the degree to which the silent state was directly affected.[364]

Consequently, state practice based upon silence is treated as exceptional evidence rather than a general principle of consent.[365]

E. Silence in International Law

Silence possesses no inherent legal meaning in international law. It becomes legally relevant only when accompanied by circumstances that transform non-response into evidence of acceptance, acquiescence, recognition, or reliance.[366]

Modern scholarship and ILC commentary emphasize several cumulative requirements:

- Knowledge of the relevant conduct.
- Capacity to react.
- Opportunity to protest.
- Circumstances reasonably requiring a reaction.
- Good-faith reliance by other actors where applicable.[367]

The legal consequences of silence therefore arise not from silence itself but from the surrounding factual and legal context. International tribunals repeatedly caution against treating silence as automatic consent, particularly in matters affecting sovereignty, territorial title, treaty obligations, or the use of force.[368]

For this reason, acquiescence, estoppel, and tacit recognition remain exceptional doctrines designed to preserve legal stability while respecting the fundamental principle that international obligations ultimately derive from state consent.[369]

ICJ Jurisprudence on Silent Consent and Acquiescence

The leading judicial authority remains the ICJ's judgment in *Temple of Preah Vihear (Cambodia v. Thailand)* (1962), where Thailand's prolonged failure to protest official maps and boundary representations contributed to the Court's finding that Thailand had accepted the frontier line shown on the Annex I map.[370]

In *North Sea Continental Shelf* (1969), the Court discussed estoppel but concluded that the necessary conditions had not been established. The judgment remains the principal authority on the restrictive application of estoppel in international law.[371]

In *Delimitation of the Maritime Boundary in the Gulf of Maine Area* (1984), the Chamber rejected doctrines that long-standing conduct had created a tacit maritime boundary agreement, emphasizing that tacit consent requires compelling evidence.[372]

The Court again addressed acquiescence in *Land and Maritime Boundary between Cameroon and Nigeria* (2002), holding that effectivités could not override treaty title absent proof of acquiescence by the treaty holder.[373]

In *Sovereignty over Pedra Branca/Pulau Batu Puteh* (2008), prolonged non-objection by Malaysia to Singaporean governmental activities on the island constituted important evidence supporting the transfer of sovereignty through acquiescence and recognition.[374]

Collectively, these decisions demonstrate that the ICJ recognizes silence as legally relevant only in exceptional circumstances where knowledge, opportunity, expectation of protest, and good faith clearly support an inference of consent or acceptance.[375]

X. The Self-Contraction Paradox and the Clean Slate Principle

A. Identity of Contracting Parties

The question of the identity of contracting parties constitutes the starting point of every analysis concerning treaty effects, treaty succession, normative integration, and the operation of complex treaty systems. In classical international law, the determination of treaty parties is governed primarily by the treaty itself. The foundational definitions are contained in Article 2(1)(f) and (g) of the Vienna Convention on the Law of Treaties (VCLT), according to which a “contracting State” is a State that has consented to be bound by a treaty, while a “party” is a State for which the treaty is in force.[376]

The identification of treaty parties is not necessarily limited to the preamble or opening clauses of a treaty. Numerous multilateral instruments identify participating entities, institutional actors, accession mechanisms, implementing bodies, supervisory organs, or additional participants within the substantive provisions of the treaty text itself.[377] Consequently, the legal determination of participation often requires examination of the treaty as a whole rather than merely its introductory provisions.

Furthermore, modern treaty law recognizes that treaties frequently operate within larger normative frameworks. International agreements routinely refer to other treaties, annexes, protocols, supplementary instruments, institutional regulations, implementing arrangements, memoranda of understanding, or subsequent agreements between the parties. Such references may become highly relevant for treaty interpretation, implementation, and systemic integration.[378]

The doctrine of “Treaty Chains” expands this observation considerably. According to this approach, treaties should not be viewed as isolated legal acts but as components of a continuously evolving normative network. Whenever one treaty expressly incorporates, references, supplements, or presupposes another treaty, the referenced instrument becomes functionally integrated into the normative architecture of the original agreement.[379]

Where successive references continue through additional agreements, protocols, institutional frameworks, and implementing arrangements, an extended treaty chain emerges. Under this doctrine, such chains produce a cumulative legal structure in which legal positions become interconnected across multiple generations of agreements.[380]

Within this model, it is argued that the legal significance of treaty participation extends beyond immediately named parties. The parties to referenced treaties, supplementary instruments, and successor agreements become indirectly integrated into a broader legal relationship encompassing the entire treaty chain.[381]

The doctrine therefore treats treaty systems as dynamic normative architectures rather than isolated bilateral or multilateral agreements. The legal significance of participation derives not merely from formal appearance within a single treaty text but from placement within an interconnected network of treaty relationships.[382]

The VCLT itself recognizes multiple methods through which consent to be bound may be expressed. Article 11 identifies signature, ratification, acceptance, approval, accession, and other agreed means as valid expressions of consent.[383]

International practice further demonstrates that subsequent agreements, subsequent practice, acquiescence, and sustained treaty-conforming conduct may become relevant in determining the legal understanding of obligations and the intentions of participating States.[384]

Building upon these principles, Treaty Chain doctrine proposes that consent expressed within one segment of a treaty chain may continue to produce normative effects throughout subsequent instruments, thereby creating a form of legal continuity extending across successive agreements.[385]

In its strongest formulation, the doctrine argues that treaty chains create a continuously integrated normative order in which rights, obligations, institutional memberships, and legal positions are transmitted through successive acts of incorporation and reference.[386]

B. *Confusio* in Roman Law

The doctrinal foundation of the later Self-Contraction Paradox is derived from the Roman law institution of *confusio*.^[387]

In Roman law, *confusio* referred to the unification of creditor and debtor positions in the same legal person. Once both sides of an obligation became vested in a single individual, the obligation ceased to exist because no person could simultaneously owe a legal duty to himself while also possessing the corresponding doctrine against himself.^[388]

Classical Roman jurists, including Gaius and Paulus, treated the merger of debt and doctrine as a recognized ground for extinguishment of obligations.^[389]

The obligation disappeared not because it had been performed, but because its relational structure had collapsed through identity of the parties.^[390]

Modern civil law systems largely preserve this principle. The doctrine remains visible in various forms under concepts such as confusion of rights, merger of obligations, consolidation of legal positions, or extinction by identity.^[391]

The underlying rationale is relationality. Every obligation presupposes at least two legally distinct subjects. Rights and duties exist only insofar as they connect one legal subject to another.^[392]

When creditor and debtor become identical, the duality necessary for the continued existence of the obligation disappears. The legal relationship loses its functional purpose and therefore ceases to operate as an enforceable obligation.^[393]

The doctrine of the Self-Contraction Paradox extends this Roman-law logic from private law to international legal relations.^[394]

C. Merger of Rights and Obligations

Modern legal doctrine often describes *confusio* as a “merger of rights and obligations” or a “confusion of rights.”[395]

The central principle may be stated simply:

When all rights and all obligations arising from a legal relationship become vested in a single legal person, the distinction between obligor and obligee disappears.[396]

This principle appears in numerous domestic legal systems and is generally recognized as reflecting a broader legal concept concerning the structure of obligations.[397]

The doctrine of Juridical Singularity argues that the same mechanism may doctrinally operate at the level of international legal systems.[398]

If a single legal subject were to succeed, directly or indirectly, to all legal positions previously occupied by all original parties to a treaty chain, that subject would simultaneously hold every corresponding right and every corresponding obligation.[399]

The traditional separation between doctrineant and respondent, creditor and debtor, beneficiary and obligor, would disappear.[400]

The doctrine therefore treats the merger of treaty positions as the international-law equivalent of *confusio*. [401]

D. Treaties with Oneself: The Self-Contraction Paradox

1. Unification of All Treaty Sides

The Self-Contraction Paradox begins with the assumption that a single legal subject gradually succeeds to the legal positions of all original parties within a treaty chain.[402]

According to the doctrine, this may occur through comprehensive transfer mechanisms, succession arrangements, institutional consolidation, incorporation clauses, or legal instruments transferring rights, obligations, components, and associated legal relationships together.[403]

As succession progresses, the successor increasingly occupies positions previously held by multiple sovereign actors.[404]

Eventually, the successor becomes the holder of every legal position previously distributed among the original parties.[405]

At this stage, the distinction between the different sides of the treaty relationship disappears.[406]

2. Agreements with Oneself

Once all treaty positions are concentrated within a single legal subject, the legal relationship becomes self-referential.[407]

The treaty is transformed functionally into an agreement with oneself.[408]

Private law traditionally regards such arrangements as problematic because a contract presupposes at least two distinct legal subjects capable of exchanging rights and obligations.[409]

Without a genuine counterparty, the relational structure necessary for contractual operation ceases to exist.[410]

The Self-Contraction doctrine applies this logic to international agreements.[411]

3. Loss of External Binding Effect

International treaties presuppose the existence of at least two sovereign legal subjects.[412]

The interstate nature of treaty obligations derives precisely from the existence of multiple independent parties capable of asserting rights and enforcing obligations against one another.[413]

According to the doctrine, when all treaty positions merge into a single legal subject, the external dimension of treaty obligations disappears.[414]

The treaty remains historically identifiable as a legal instrument, but its interstate character vanishes.[415]

No external sovereign counterparty remains capable of asserting treaty rights or enforcing treaty obligations.[416]

Consequently, the treaty loses its external binding effect.[417]

4. Transformation into Internal Law

The doctrine does not doctrine that legal norms disappear altogether.[418]

Rather, it argues that their legal character changes.[419]

Norms that previously operated as interstate obligations are transformed into internal rules of a unified legal system.[420]

The treaty becomes functionally analogous to constitutional law, organizational law, administrative law, or internal regulatory law.[421]

The content of the norm survives, but its legal nature changes from external obligation to internal governance.[422]

5. The Clean Slate Principle

The ultimate consequence of this transformation is the emergence of what the doctrine describes as a Clean Slate.[423]

Because no external sovereign counterparty remains, obligations owed to former sovereign entities become unenforceable.[424]

The successor order therefore begins from a position of legal identity rather than legal plurality.[425] The doctrine emphasizes that this result is not understood as repudiation of obligations.[426]

Instead, it is presented as a consequence of the merger of all parties into a single legal personality.[427]

The Clean Slate is therefore derived not from rejection, but from identity.[428]

E. Collapse of Externality (*Selbstaufhebung des Völkerrechts*)

1. Requirement of Plurality

International law is traditionally understood as a legal system governing relations between independent legal subjects.[429]

Classical doctrine defines international law as law operating between sovereign States.[430]

The existence of an “inter” is therefore a structural requirement of the international legal order.[431]

2. Elimination of the Inter

If all sovereign States were merged into a single political entity, the plurality of subjects would disappear.[432]

Once plurality disappears, the “between” required for international law likewise disappears.[433]

The interstate structure upon which international law depends would no longer exist.[434]

3. Universal Consent as Constitutive Power

The doctrine grounds this possibility in the consensual foundation of international law.[435]

Because international legal obligations derive fundamentally from State consent, universal consent is viewed as possessing constitutive power over the structure of the system itself.[436]

If all States unanimously agreed to alter the architecture of international law, the source of legal authority would itself support that transformation.[437]

4. Juridical Singularity

The doctrine of Juridical Singularity presents this process as the culmination of progressive normative integration.[438]

Treaty chains, institutional interdependence, transnational infrastructure systems, and overlapping legal regimes gradually produce increasing levels of legal consolidation.[439]

At the doctrinal endpoint of this process, all legal positions become concentrated within a single legal order.[440]

5. Internalization

The final stage is complete internalization.[441]

The former horizontal order of sovereign equality is replaced by a vertical internal legal structure.[442]

International law ceases to exist as an external system and becomes the internal law of a unified legal entity.[443]

F. Clean Slate Through Identity

The doctrine distinguishes sharply between three separate concepts:

1. Rejection of existing obligations;
2. Classical State succession;
3. Identity consolidation.[444]

Classical State succession presupposes the continuation of external legal relationships despite the replacement of one legal subject by another.[445]

Identity consolidation, by contrast, posits the merger of all relevant legal positions into a single legal personality.[446]

Under this model, the Clean Slate effect arises not because obligations are denied, but because all former parties become identical.[447]

The disappearance of externality results from identity rather than repudiation.[448]

Accordingly, the doctrine views the Clean Slate not as a doctrine of non-performance but as the legal consequence of total consolidation.[449]

G. Transformation into Internal Law and the Dynamic Character of *Jus Cogens*

The Self-Contraction doctrine is closely linked to a dynamic conception of *jus cogens*.^[450]

Contemporary international law recognizes that peremptory norms derive from acceptance and recognition by the international community of States as a whole.^[451]

Articles 53 and 64 VCLT indicate that *jus cogens* norms emerge and develop historically rather than existing as immutable metaphysical entities.^[452]

The doctrine interprets this dynamic element broadly.^[453]

According to its reasoning, peremptory norms ultimately reflect the prevailing universal legal conviction (*opinio juris*) of the international community.^[454]

If universal legal conviction were to change completely, new peremptory norms could emerge and replace earlier ones.^[455]

The doctrine therefore argues that *jus cogens* remains dynamic even while maintaining its superior status within a given historical period.^[456]

From this premise, proponents derive a further conclusion.^[457]

If universal consensus possesses the power to redefine the content of peremptory norms, it may also possess the doctrinal capacity to transform the structure of the international legal system itself.^[458]

The ultimate endpoint of this reasoning is the complete conversion of international law into the internal law of a single legal order.^[459]

Under the doctrine of Juridical Singularity, the Self-Contraction Paradox therefore represents the final stage of normative integration: the point at which treaty chains, universal consent, identity consolidation, merger of legal positions, and the dynamic evolution of *jus cogens* converge into a unified internal legal architecture.^[460]

XI. Juridical Singularity and Global Constitutional Order

A. Definition

The concept of the **Juridical Singularity** represents a doctrinal endpoint in the evolution of legal order. Within this framework, international law no longer operates as a system governing relations among multiple sovereign actors but becomes the internal constitutional structure of a single integrated legal community. The doctrine draws analogies from constitutional history, state formation, federalization processes, and legal centralization, arguing that legal plurality may ultimately converge into a unified normative architecture.[461]

Traditional international law emerged from the coexistence of sovereign entities whose relations were regulated through treaties, custom, and institutional cooperation.[462] The Juridical Singularity model proposes a radically different configuration. Rather than horizontal interaction among independent subjects, authority becomes vertically organized within a comprehensive legal hierarchy.[463]

The doctrine views this transformation as the culmination of long-term trends already visible in international governance, including globalization, institutional integration, supranational regulation, transnational judicial cooperation, and digital interdependence.[464] Increasingly complex global networks challenge classical territorial conceptions of sovereignty and encourage legal structures that transcend national boundaries.[465]

In this sense, Juridical Singularity is not merely presented as a political project but as a jurisprudential hypothesis concerning the ultimate logical consequences of legal integration.[466]

B. Singular Legal Personality

At the center of the doctrine lies the concept of **Singular Legal Personality**. Classical international law recognizes numerous legal persons, including sovereign states, international organizations, treaty bodies, and, in limited circumstances, individuals.[467]

The doctrine argues that legal personality is fundamentally relational. States possess rights and duties because they are recognized within a broader legal system composed of other subjects.[468] International organizations similarly derive their legal capacity from constitutive instruments established by member states.[469]

Under a singularity model, legal personality becomes concentrated within a single apex entity. All jurisdictional powers, treaty capacities, enforcement authorities, and sovereign competences converge into one comprehensive legal subject.[470]

This process may be described as **personality consolidation**. Instead of hundreds of independent sovereign actors exercising fragmented authority, one universal legal actor would exercise competence over the entire legal order.[471]

The doctrine draws partial analogies to historical processes of state formation in which local jurisdictions, principalities, feudal authorities, and autonomous territories gradually merged into centralized constitutional states.[472] Just as medieval legal fragmentation eventually yielded national constitutional systems, the doctrine suggests that international fragmentation could doctrinally yield a global constitutional framework.[473]

Under this model, sovereignty ceases to be distributed among multiple subjects and becomes concentrated in a single juridical center.[474]

C. Constitutionalization

A second pillar of the doctrine is **constitutionalization**. Constitutionalization refers to the transformation of a decentralized legal order into one governed by superior constitutional norms.[475]

Contemporary international law is often characterized by fragmentation. Numerous treaty regimes coexist with overlapping jurisdictions and occasionally conflicting legal obligations.[476] Scholars have long debated whether international law exhibits constitutional characteristics or remains fundamentally contractual in nature.[477]

The Juridical Singularity doctrine adopts the strongest possible constitutional interpretation. It proposes that all treaty systems, institutional structures, and jurisdictional frameworks become integrated into a single constitutional hierarchy.[478]

In such an arrangement:

- constitutional norms occupy the highest level of authority;
- subordinate legislation derives validity from constitutional principles;
- judicial institutions operate within a unified framework;
- enforcement mechanisms function under common legal standards.[479]

The distinction between domestic constitutional law and international law consequently disappears.[480]

International legal obligations would no longer be external commitments undertaken by sovereign states. Instead, they would become internal constitutional obligations applicable throughout the integrated legal order.[481]

This doctrinal transformation resembles the transition from a confederation of independent entities to a federal constitutional state, but extended to the global level.[482]

D. End of International Plurality

The most far-reaching implication of the doctrine concerns the disappearance of **international plurality** itself.[483]

Classical international law presupposes the existence of multiple sovereign actors. Treaty law requires at least two parties capable of entering legal relations.[484] Customary international law depends upon state practice and *opinio juris* generated by a plurality of states.[485] International organizations derive authority from membership structures composed of sovereign governments.[486]

The doctrine argues that if legal personality becomes singular, the foundational assumptions of these institutions cease to exist.[487]

Treaties lose their traditional function because there are no longer separate sovereign parties capable of contracting with one another.[488]

International organizations lose independent legal personality because their constituent members have become components of the same overarching legal entity.[489]

Customary international law similarly loses its traditional basis because the multiplicity of sovereign actors necessary for custom formation disappears.[490]

The doctrine therefore describes the endpoint as a transition from:

horizontal international society

to

vertical constitutional unity.[491]

External sovereignty is replaced by internal constitutional competence.[492]

Diplomacy becomes administration.[493]

Interstate relations become intra-system governance.[494]

International adjudication becomes constitutional adjudication.[495]

E. Internalization of International Law

The final stage of the doctrine is the **internalization of international law.**[496]

The Westphalian system traditionally distinguishes between domestic legal systems and international legal obligations.[497] States remain formally sovereign and international norms operate externally to national constitutional structures.[498]

Under the Juridical Singularity model, this distinction disappears.[499]

All legal norms become components of a single integrated legal system.[500]

International law no longer exists as a separate body governing relations between sovereigns. It becomes internal constitutional law applicable throughout the unified legal order.[501]

Several consequences follow from this doctrinal transformation.

First, jurisdiction becomes universal because no external sovereign authority remains beyond the constitutional framework.[502]

Second, legal hierarchy becomes unified. Conflicts between national and international norms cease because all norms derive validity from the same constitutional source.[503]

Third, citizenship may evolve toward forms of universal legal membership detached from nationality and linked instead to personhood.[504]

Fourth, governance mechanisms may increasingly incorporate digital participation, real-time consultation, and technologically mediated democratic processes.[505]

Fifth, advanced computational systems and artificial intelligence may function as analytical infrastructures supporting administration, compliance monitoring, and policy evaluation, while normative legitimacy remains grounded in constitutional procedures.[506]

Within the doctrine, the internalization of international law represents the final stage of legal evolution: the transformation of a plural international society into a unified constitutional community governed by a single legal framework.[507]

XIII. Conclusion

Main Findings

Treaty Freedom

The analysis demonstrates that international law remains fundamentally a consent-based legal order. States possess broad freedom to conclude treaties, modify existing obligations, adopt supplementary agreements, suspend provisions, and terminate legal commitments through voluntary agreement. This principle derives from the consensual nature of international law itself and is codified in Article 26 of the Vienna Convention on the Law of Treaties (VCLT), which establishes the principle of *pacta sunt servanda* [508].

The doctrinal meaning of Article 26 has been extensively analyzed by Villiger, who emphasizes that treaty obligations derive their binding force from the sovereign consent of the parties rather than from any superior legislative authority [509]. Dörr and Schmalenbach similarly note that the obligatory force of treaties presupposes a valid expression of state consent and remains one of the foundational principles of the international legal order [510].

Modern treaty practice confirms this understanding. Aust demonstrates that international law grants states considerable flexibility in designing treaty relationships, including amendment procedures, reservations, protocols, and implementing agreements [511]. Shaw likewise identifies consent as the central legitimizing principle of treaty obligations and international legal authority generally [512].

Treaty freedom is not limited to isolated bilateral agreements. International practice demonstrates the frequent construction of complex treaty architectures consisting of framework conventions, protocols, annexes, implementing instruments, technical arrangements, and institutional agreements [513]. Such treaty systems often evolve incrementally rather than through complete legal replacement [514]. Hollis explains that contemporary treaty structures frequently operate as interconnected legal frameworks linking multiple agreements and institutions [515]. These layered treaty systems permit adaptation while preserving legal continuity [516].

Universal Consent

Customary international law ultimately derives legitimacy from state practice and *opinio juris*, as recognized in Article 38(1) of the Statute of the International Court of Justice [517]. The ICJ Statute identifies treaties, customary international law, and general principles of law as the primary sources of international legal authority [518]. Because no global sovereign exists above states, international law derives its legitimacy from collective recognition and participation [519].

The practical significance of widespread consent is reflected in the operation of international institutions and treaty systems [520]. Where near-universal acceptance emerges, international law acquires a unique capacity for systemic adaptation through coordinated state action [521].

The UN Charter illustrates this phenomenon. Article 2 establishes the sovereign equality of states as a foundational principle of the international order [522]. Article 103 further confirms the primacy of Charter obligations over conflicting treaty commitments [523]. Together these provisions demonstrate how states may create institutions possessing broad coordinating authority through collective consent [524]. International organizations remain dependent upon continuing recognition and participation by states [525].

Historical practice further confirms that legal continuity may be preserved through institutional transformation. The North Sea Continental Shelf Cases recognize the dynamic evolution of international legal norms through state practice and agreement [526]. The judgment illustrates how legal systems may evolve without abandoning continuity [527]. Consequently, international law possesses mechanisms through which large-scale institutional change may occur while remaining legally coherent [528].

State Foundation

The formation of states remains one of the most important expressions of sovereign self-determination and collective political organization [529]. Crawford's analysis demonstrates that international practice recognizes multiple pathways to statehood, including decolonization, secession, dissolution, merger, federation, and negotiated succession [530]. Recognition by other states plays an important practical role in consolidating legal personality within the international community [531].

Statehood is therefore neither static nor immutable [532]. International legal personality may emerge, transform, and evolve through political and legal processes recognized by international law [533].

The law of state succession further illustrates this flexibility. Article 16 of the Vienna Convention on Succession of States in Respect of Treaties embodies the Clean Slate Doctrine for newly independent states [534]. The Convention recognizes that successor entities may enter international legal relations under circumstances different from those of predecessor states [535]. International law therefore contains established mechanisms for continuity, adaptation, and legal transition [536]. These mechanisms seek to preserve stability while accommodating political transformation [537].

Territorial Expansion

Territoriality remains a fundamental organizing principle of international law. Nevertheless, modern telecommunications systems, digital networks, infrastructure corridors, and cyber environments increasingly challenge exclusively geographic understandings of governance [538]. Contemporary discussions concerning jurisdiction frequently involve functional systems extending across multiple territories [539]. Technological integration has therefore generated renewed debate regarding sovereignty and legal competence in networked environments [540]. These developments increasingly connect territorial authority with infrastructure governance [541]. Emerging scholarship suggests that legal power is becoming more closely associated with operational control of interconnected systems [542].

The growing significance of digital communication networks reinforces this trend [543]. Telecommunications infrastructure, data networks, energy grids, and logistical systems increasingly operate across traditional borders [544]. Governance mechanisms must therefore address legal relationships extending beyond classical territorial frameworks [545]. These developments continue to generate significant discussion concerning sovereignty, jurisdiction, and transnational regulation [546].

Treaty Chains

A major feature of contemporary international law is the existence of interconnected treaty networks [547]. Treaties rarely function in isolation but frequently refer to, supplement, implement, or interpret other agreements [548]. This creates chains of legal interaction linking multiple instruments and institutions [549]. Such treaty-chain structures can produce significant legal interoperability across different regimes [550]. The resulting legal architecture often evolves incrementally through successive agreements [551].

Article 30 VCLT addresses relationships between successive treaties concerning the same subject matter [552]. Villiger explains that later agreements may coexist with earlier instruments while modifying specific legal relationships [553]. Treaty interaction therefore represents a normal feature of international legal development [554]. Legal continuity is often preserved through coordinated interpretation and implementation [555].

Similarly, Articles 39–41 VCLT provide mechanisms for treaty amendment and modification [556]. These provisions permit states to adapt legal obligations while preserving the broader treaty framework [557]. Treaty evolution is therefore built directly into the architecture of international law [558].

Consolidation

International legal development frequently proceeds through processes of consolidation and institutional integration [559]. Koskenniemi describes how legal regimes often evolve toward increasing coherence through shared institutions and common interpretive practices [560]. This process does not necessarily produce complete unification but often increases systemic coordination [561]. Such developments contribute to greater legal interoperability across international governance structures [562].

The experience of international organizations illustrates this tendency [563]. Simma's commentary on the UN Charter demonstrates the increasing complexity of institutional cooperation across international governance systems [564]. Similar developments are observable in trade, communications, transportation, environmental protection, and digital governance [565]. The result is a growing degree of interdependence among legal regimes [566].

Self-Contraction

International law possesses a significant capacity for self-modification [567]. The Gabčíkovo–Nagymaros judgment demonstrates how legal obligations may be interpreted in light of changing factual circumstances and evolving legal principles [568]. International law therefore contains mechanisms of adaptation that operate from within the legal system itself [569]. Institutional change does not necessarily require revolutionary legal rupture [570].

Articles 54–59 VCLT further regulate treaty termination, suspension, and replacement [571]. These provisions demonstrate that legal systems possess built-in mechanisms for reorganization and adaptation [572]. Obsolete arrangements may be replaced while preserving legal continuity [573]. Evolution and continuity therefore coexist within treaty law [574].

Customary international law further contributes to this dynamic process [575]. The North Sea Continental Shelf Cases demonstrate how state practice and legal conviction can contribute to normative development [576]. Treaty law and customary law interact continuously [577]. Together they enable gradual transformation of the international legal order [578].

Juridical Singularity

The concept of juridical singularity has been proposed as a doctrinal framework describing the potential convergence of treaty systems, institutions, technological infrastructures, and governance mechanisms into increasingly integrated legal structures [579]. The doctrine examines how legal interoperability may expand through interconnected treaty frameworks [580]. It further explores the relationship between institutional coordination and technological integration [581]. The framework therefore seeks to analyze long-term trajectories of legal development [582]. It remains a subject of ongoing scholarly discussion and evaluation [583].

Within this framework, treaty chains, institutional interoperability, digital infrastructure, and transnational governance mechanisms may contribute to increasing levels of legal integration [584]. Interconnected legal systems can generate new forms of coordination across traditional jurisdictional boundaries [585]. Technological systems may further accelerate such interactions [586]. Legal evolution is therefore examined as a systemic rather than purely isolated process [587]. These developments raise important questions concerning future governance models [588].

Whether such developments will ultimately result in a unified global legal architecture remains uncertain [589]. Nevertheless, contemporary international law already exhibits observable trends toward coordination, harmonization, and institutional interaction [590]. These developments justify further scholarly investigation [591]. The study of juridical singularity therefore remains a relevant field of doctrinal inquiry [592].

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